

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased: 11/24/21

-----X
ANGELICA COLON-RUSSELL and RAMEL SMITH,

SUMMONS

Plaintiffs,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. EDUARD LUCERO and
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate
additional offending officers, all Individually and in
their official capacities,

The basis of venue is
CPLR 504 (3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 24, 2021



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, NYC Law Dept.
New York, New York 10007

P.O. EDUARD LUCERO, Shield 12992 of the 40th Precinct
257 Alexander Ave., Bronx NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ANGELICA COLON-RUSSELL and RAMEL SMITH,

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, P.O. EDUARD LUCERO and
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate
additional offending officers, all Individually and in
their official capacities,

Defendants.

-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION UNDER 42 USC §1983 ON BEHALF OF

THE PLAINTIFFS ANGELICA COLON-RUSSELL and RAMEL SMITH

1. At the time of the commencement of this action, Plaintiff ANGELICA COLON-RUSSELL was a resident of the County of New York, City and State of New York.
2. At the time of the commencement of this action, Plaintiff RAMEL SMITH was a resident of the County of Bronx, City and State of New York.
3. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

4. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
5. That the CITY OF NEW YORK maintains a Police Department.
6. That on and about March 25, 2021, P.O. EDUARD LUCERO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
7. That on and about March 25, 2021, at approximately 6:30 P.M., P.O. EDUARD LUCERO was working and acting within the scope of his employment as a Police Officer, and under the color of law.
8. That on and about March 25, 2021, OFFICERS JOHN AND/OR JAMES DOE, whose actual names are presently unknowable by Plaintiffs but necessarily and exclusively known by defendants by virtue of their involvement with the arrest and detentions of Plaintiffs, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
9. That on and about March 25, 2021 at approximately 6:30 P.M., OFFICERS JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

10. That on or about March 25, 2021 at approximately 6:30 P.M., at or near the vicinity of 2535 3rd Avenue, Bronx, New York, the Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were improperly questioned, detained, arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine ANGELICA COLON-RUSSELL and RAMEL SMITH.

11. That at the above time and place, plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were briefly within a venue open to the public.

12. That at the above time and place, the defendants entered the venue and detained and arrested the plaintiffs for being in possession of items that were in the exclusive possession of others, and that plaintiffs did not, nor could not have possessed, in fact or in law.

13. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

14. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and Plaintiffs being aware of their unlawful

confinement were thereby caused freight, shock, emotional distress and physical consequences.

15. That the defendants, their agents, servants and/or employees arrested the Plaintiffs without any basis in law or fact, by making false accusations against them and with actual malice, when they knew, or in the exercise of reasonable care, should have known they were false.

16. That the defendants P.O. EDUARD LUCERO and OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide or allow to be provided, false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing them to suffer unjust prosecutions that defendants had no reasonable expectation would succeed.

17. That all criminal charges brought against Plaintiffs, which were brought against ANGELICA COLON-RUSSELL under docket number CR-004852-21BX and against RAMEL SMITH under docket number CR-004855-21BX in the Bronx Criminal Court regarding the incidents of March 25, 2021, were dismissed on May 11, 2021 and the prosecutions were terminated in plaintiffs' favor.

18. As a result, Plaintiffs suffered malicious prosecutions.

19. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiffs without probable or reasonable or knowledge of warrant, intended to and did confine plaintiffs without their consent, which non-privileged confinement plaintiffs were consciously aware of and did initiate criminal proceedings without probable cause, maliciously.
20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting all persons in the vicinity of illicit items regardless of the lack of possession of said items, in fact or in law, and without reasonable suspicion that a crime or offense had been or was about to be committed; of arresting persons without individualized reasonable or probable cause and claiming persons were in possession of things that they were not, in fact, be in possession of, nor had knowledge of, or were not unlawful or crimes to be in possession of, for nefarious, unlawful reasons, including to satisfy arrest quotas and to enhance employment opportunities, and repeatedly providing false information and testimony without reprimand to the offending officers and for nefarious purposes such as degrading, humiliating and subjugating minority persons in certain communities.

21. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause for possession of things they could not have been in possession of or did not justify a lawful arrest, and conducting of searches in public and while in custody when there is no reasonable basis to conduct such searches, are a matter of public policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

22. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police

Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., brought as a class action for persons similarly situated, in the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath, along with other evidence including statistical analysis, that the NEW YORK CITY POLICE DEPARTMENT routinely arrests primarily minority populations without a legal reason to do so, and are required or expected to do so, for amongst other nefarious reasons, to satisfy arrest quotas.

24. These policies and procedures are openly or tacitly acknowledged by defendants and are evidenced not only as identified above, but that such arrests and searches are rare and infrequent in non-minority populated areas, but common-place in communities populated by racial minorities, and are evidenced by defendants' own and others tabulations of arrests for these charges in various communities.

25. Such unlawful arrests, as a small sample, has occurred to such individuals such as SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue, Bronx, New York; ADEUNA CABRAL JOSEFINA CABRAL and ZOIKY BELEN, on January 15,

2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and; TREENA WILSON and KENNETH CLARKE on or about April 8, 2010 at approximately 3 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNAY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; VIVIAN BENNETT, TONY BENNETT, OLIVIA BENNETT, ELIZABETH BENNETT, AHMED BAKYOKO and KEVIN TILLMAN on July 21, 2011 at 1065 University Place, Apartment 2B, Bronx, New York; TIFFANY and CAROLYN HOLMAN on October 21, 2011 at 4647 Park Avenue, Bronx, New York; CHRISTINA MEDINA on June 1, 2012 at 2140 Cruger Avenue, Bronx New York; GINNY TAPP on January 23, 2013 at 2089 Arthur Avenue, Bronx, New York, GEOFFREY ROBINSON on July 7, 2015; LAKEISHA MORGAN on February 18, 2017 and a significant number of

other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments

26. The herein above described actions and omissions, engaged in under the color of law by the defendants their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of property and person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

27. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

28. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

29. That as a result of the foregoing, the Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE ARREST,

UNLAWFUL DETENTION AND ASSAULT ON BEHALF OF

THE PLAINTIFFS ANGELICA COLON-RUSSELL and RAMEL SMITH

30. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 29 as though more fully set forth herein.

31. That on May 18, 2021 Plaintiff ANGELICA COLON-RUSSELL, and on May 24, 2021 Plaintiff RAMEL SMITH, caused Notices of Claim to be presented to the defendant CITY OF NEW YORK, by presenting copies thereof to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damages or injuries claimed to have been sustained, so far as then practicable.

32. At least thirty (30) days have elapsed prior to the commencement of this action since the presentation of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

33. THE CITY OF NEW YORK demanded, and Plaintiff ANGELICA COLON-RUSSELL did give appear and give testimony at a General Municipal Law §50h hearing on August 3, 2021.
34. THE CITY OF NEW YORK demanded, and Plaintiff RAMEL SMITH did appear and give testimony at a General Municipal Law §50h hearing on October 5, 2021.
35. This action was commenced on the claims within one year and ninety days after the happening of the events upon which the claims are based.
36. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
37. That on or about March 25, 2021 at approximately 6:30 P.M., at or near the vicinity of 2535 3rd Avenue, Bronx, New York, the Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were improperly arrested and confined without knowledge of warrant, without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine ANGELICA COLON-RUSSELL and RAMEL SMITH.
38. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

39. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiffs and took their property without any basis in law or fact, and Plaintiffs being aware of their unlawful confinement were thereby caused freight, shock, emotional distress and physical consequences.

40. That during said unlawful arrests plaintiffs were physically retrained and subjected to other unwanted touchings, thereby sustaining injuries from assaults upon their persons.

41. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR

MALICIOUS PROSECUTION ON BEHALF OF

THE PLAINTIFFS ANGELICA COLON-RUSSELL and RAMEL SMITH

44. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That the defendants, their agents, servants and/or employees arrested the Plaintiffs without any basis in law or fact, by making false accusations against them and with actual malice, when they knew, or in the exercise of reasonable care, should have known they were false.

46. That the defendants P.O. EDUARD LUCERO and OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide or allow to be provided, false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing them to suffer unjust prosecutions that defendants had no reasonable expectation would succeed.

47. That all criminal charges brought against Plaintiffs, which were brought against ANGELICA COLON-RUSSELL under docket number CR-004852-21BX and against RAMEL SMITH under docket number CR-004855-21BX in the Bronx Criminal Court regarding the incidents of March 25, 2021, were dismissed on May 11, 2021 and the prosecutions were terminated in plaintiffs' favor.

48. As a result, Plaintiffs suffered malicious prosecutions.

49. That no negligence or actions on the part of the Plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the Plaintiffs were damaged in sums which exceed the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
RETENTION AND TRAINING ON BEHALF OF
THE PLAINTIFFS ANGELICA COLON-RUSSELL and RAMEL SMITH**

52. That Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise, investigate, discipline and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

54. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper conducting of stops, searches and subsequent arrests and lawful treatment of individuals.

55. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiffs and for the purchase of drugs and medicines, and that Plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations; all to the Plaintiffs' damage in a sum which exceeds the jurisdiction of all lower Courts.

56. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

57. That as a result of the foregoing, the Plaintiffs ANGELICA COLON-RUSSELL and RAMEL SMITH were damaged in sums which exceed the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 24, 2021



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs
ANGELICA COLON-RUSSELL
and RAMEL SMITH

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. EDUARD LUCERO, Shield 12992 of the 40th Precinct
257 Alexander Ave., Bronx NY 10454

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiffs,

ANGELICA COLON-RUSSELL and RAMEL SMITH

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently present in the county where your affirmant maintains his office.

DATED: Bronx, N.Y.

November 24, 2021



JONATHAN L. GLEIT, ESQ.